



IPOPHL Manual of Examination of Geographical Indications

This Manual of Examination of Geographical Indications (GIs) is intended to guide examiners of the Bureau of Trademarks (BOT) in the proper and consistent application of the rules governing the registration and protection of GIs in the Philippines. It aims to standardize examination procedures in accordance with the *Rules and Regulations on Geographical Indications* (IPOPHL Memorandum Circular No. 2022-022), thereby promoting uniformity, legal certainty, and transparency in decision-making.

As GI protection grants an exclusive right over a name that may have previously existed in the public domain, the examination process must be conducted with a high degree of diligence and responsibility. It is not merely procedural, but a substantive exercise that affirms the legal and economic significance of a GI. The examiner must ensure that no unjustified registration is granted, as this could lead to objections, misuse, or erosion of public trust. A properly examined GI confers credibility and assurance, not only to producers within the defined geographical area, but also to consumers, who rely on the authenticity, origin, and quality associated with the registered GI.

By providing a structured and legally grounded framework for GI examination, this Manual supports the effective implementation of the Philippine GI system and contributes to the broader goals of safeguarding cultural heritage, promoting local products, and enabling community-based economic development through the recognition and protection of authentic Philippine geographical indications.

CHAPTER I - ORIGINS AND DEVELOPMENT OF GEOGRAPHICAL INDICATIONS

1.1 Early Use of Indications of Geographical Origin

Indications of geographical origin have been recognized for centuries as a means of linking the quality and reputation of goods to their place of origin. Such indications allowed producers to distinguish their products from similar goods and to develop strategies of market differentiation based on authenticity. Marks identifying the geographical origin of goods are among the earliest forms of trademarks, used to signify that certain goods possessed distinctive qualities arising from environmental conditions, methods of processing, or particular skills of production (Blakeney, 2001).¹

Historical records show that by the 12th century, manufacturers in Europe were already using indications of origin and seals of quality. Tapestry makers in Central Europe and clothiers in England marked their goods with the name or symbol of their city to signify craftsmanship and origin. Likewise, early long-distance trade in goods such as spices, silk, and other commodities reflected awareness of the connection between a product's reputation and its geographic source.²

1.2 Evolution of the Appellation d'Origine Contrôlée (AOC) System

The modern development of geographical indications is, however, largely credited to France's system of Appellation d'Origine Contrôlée (AOC) for wines, regarded as the oldest and most rigorous European label-of-origin system.³ The AOC framework was created to assure territorial origin, typicity, and compliance with precise production rules. It reflects the principle that a product's qualities derive not only from geographical conditions such as soil and climate but also from human factors, the methods and traditions of local producers. The AOC system thus emphasizes that the resulting products have attributes that cannot be reproduced outside the designated area.

1.3 Recognition of GIs under the TRIPS Agreement

Building on the French experience, similar systems emerged across Europe and later informed international legal instruments protecting indications of source and appellations of origin. These culminated in the Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), which introduced geographical indications (GIs) as a defined category of intellectual property and established uniform minimum standards for their protection among World Trade Organization (WTO) members.

¹ Geographical Indications, A Review of the Proposal at the TRIPS Council: Extending Article 23 to Products other than Wines and Spirits (Dr. Dwijen Rangnekar, Senior Research Fellow, School of Public Policy, School of London @ https://unctad.org/system/files/official-document/ictsd2003ipd4_en.pdf

² *ibid*

³ The AOC system is the oldest of the European label of origin systems and is widely regarded as the most strict and thoroughgoing of its kind. It is, in this sense, a model of reference for origin labelled products. The system is guided by the concept of "terroir"

CHAPTER II — GIs AND TRADEMARKS

2.1 Distinctive Signs: Overview

GIs and trademarks are both intellectual property rights, belonging to the distinctive signs family. Both have their own scope of protection. This section aims to give an overview of the main differences between these two IP tools. It will also explain that they can be complementary when implementing an "origin-linked products" protection and promotion strategy.

GIs and trademarks are distinctive signs used to distinguish goods or services in the marketplace. Both can convey information about the origin of a good and enable consumers to associate a particular quality with a good or service.

In practice, and in reference to the WTO TRIPS Agreement as well as relevant International Treaties such as the "Lisbon System", services are not protected by a GI that covers only goods. GI protection for services is extremely rare, as GI protection has been originally built for specific goods. GIs for services are therefore not recognized in the large majority of countries having a GI system. A few countries have decided in their legislation to cover GIs for services (India, Brazil, and Morocco). However, there is no concrete implementation for the time being.

2.2 Main Differences between GIs and Trademarks

GIs	Trademarks
<u>Must</u> certify the origin of the product	<u>May</u> certify the origin of the product. Trademarks should not mislead the public on the origin of the product, nor can they be descriptive.
<u>Protect</u> goods, according to a national or sometimes a regional classification of goods	<u>Protects</u> goods and services, according to the Nice classification
<u>Production rooted in the region</u> – GI and its products cannot be delocalised to another area / country	<u>Production not attached to a specific place</u> - products can be made anywhere
<u>Ownership is collective</u>	<u>For individual trademarks and some certification trademarks, ownership is individual</u> <u>For collective trademarks, ownership is collective.</u>
<u>GI ownership is not a transferable right. It cannot be licensed</u>	<u>Trademarks are transferable rights and may subject to licensing agreements.</u>

2.3 Comparative Scope of Protection

GIs	Trademarks
Most of the <i>sui generis</i> GI system provides for a comprehensive protection against: • Direct or indirect commercial use of a registered name for products not covered by the registration where those products are comparable to the products registered under that name or where using the name exploits the reputation of the protected name, including when those products are used as an ingredient. • Misuse, imitation or evocation of the name on a non-registered product, including when those products are used as an ingredient, even if: ○ the true origin of the product or services is indicated, ○ the protected name is translated, ○ the protected name is accompanied by an expression such as ‘style’, ‘type’, ‘method’, ‘as produced in’, ‘imitation’ or similar • False or misleading information about the provenance, origin, nature or essential qualities of products on the inner or outer packaging, advertising material or documents relating to the product concerned, and the packing of the product in a container that might give a false impression as to their origin. • Any other practice liable to mislead the consumer as to the true origin of the product. • ‘Genericity’. Once registered, the GI name cannot become generic	The registered trademark provides for the exclusive rights on the use of the name and/or logo in the classes where it has been registered. In general, there is no guarantee against the use of the trademark in translation and with expressions like ‘style’, ‘type’, etc. There is no guarantee against ‘genericity’. If the trademark owner does not assert his rights, the name can become generic.
Protection of GIs is usually not conditioned on the use on the market.	For the protection to be effective, the trademark must be used on the market. This can sometimes pose problems, for instance when sanitary standards prevent a product from being sold in certain markets. Failure to use the trademark can lead to cancellation.
Enforcement of the rights on the GI name: often public authorities play a role in the defence of the GI In countries with <i>sui generis</i> systems of protection – such as in the EU - GIs are protected through administrative enforcement, i.e. the	Enforcement of trademark rights is entirely private – it is up to a trademark owner to defend its rights. Trademark owners must continue to assert their rights. They need to be ready to launch

state or public authorities are responsible for policing and ensuring GI protection.	all necessary legal actions (opposition to trademark registration for instance) to protect their intellectual property right, as the state or public authorities are not responsible for policing and ensuring the protection of the trademark. Failure to do so would significantly undermine the right. Such protection is called ex-parte.
The principle ‘first in time, first in right’ is not automatically applied to GIs. A GI can be registered and coexist with an existing trademark if all GI requirements are met and the trademark was used in good faith. Conversely, a trademark that seeks to register a GI name for goods not originating from the GI area will be refused on the ground that it is likely to mislead the public as to geographical origin. In addition, a designation of origin or geographical indication cannot be registered if a well-known trademark already exists and if the registration of a designation of origin or geographical indication is liable to mislead the consumer as to the true identity of the product.	Protection granted according to the principle “first in time, first in right”.

2.4 Duration

GIs	Trademarks
Often protection granted as long as the GI exists. Ex: in the EU and in most of Asian countries, GI protection is not limited in time – no need to renew the registration.	Protection must be renewed periodically every 10 years in general

2.5 GIs and Collective Marks

Collective mark means any visible sign designated as such in the application for registration and capable of distinguishing the origin or any other common characteristics, including quality of goods or services of different enterprises which use the sign under the control of the registered owner of the collective mark.⁴

Rule 400.2 of the Trademark Regulations further provides that an application for registration of a collective mark must be accompanied by a copy of the agreement, if any, governing the use of the collective mark.

⁴ Rule 101 (d), Trademark Regulations of 2023

A collective mark is a category of mark intended for use by members of a collective entity, such as an association or cooperative of manufacturers, producers, or traders. Ownership of the collective mark rests with the collective body, which grants its members the exclusive right to use the mark. In general, such organizations are established to ensure that their members comply with defined quality standards. Members are authorized to use the collective mark only if they meet the conditions set out in the regulations governing its use. Accordingly, a collective mark serves to inform the public of specific characteristics of the products to which it is applied. An enterprise entitled to use a collective mark may also simultaneously use its own individual trademark.

Collective trademarks can designate the source of products or services in relation to an association of producers and its members. In this case, the main function of collective trademarks is to put emphasis on a group of operators, eventually producers of the goods including the way the goods are produced and the place where the goods have been produced. However collective trademarks do not require specific evidence on the link between the good & the origin, as for the GI. The same differences as the ones mentioned above for trademarks apply between GIs and collective trademarks.

In some cases, collective trademarks, where GI system may not be legally available, may be used as a first step for producers to understand the importance of a collective strategy to protect collectively their products name and reputation as collective trade mark should they have agreed to work collectively and to establish a group which will manage the trade mark and the quality strategy. It can be a first step towards the registration of a GI, as the group also has the possibility to request the protection of the name as a GI. Once the GIs is protected, the collective mark will be used as a communication and marketing tool, combining the design of the collective mark and the official GI logo. Collective trademarks and GIs could be complementary tools to protect a name and to promote the product.⁵

2.6 GIs and Certification Marks

Certification mark means any sign, used or intended for use in commerce with the owner's permission by someone other than its owner, to certify regional or other geographic origin, material, mode of manufacture, quality, accuracy, or other characteristics of someone's goods or services, or that the work or labor on goods or services was performed by members of a group or associations.⁶

Rule 400.2 of the Trademark Regulations further provides that an application for registration of a certification mark must be accompanied by a copy of the standards set by the certifier governing the use of the certification mark.

In contrast to collective marks, certification marks are not owned by a collective body, such as an association of producers, but by a certifying authority. This authority may be a local government entity or a private organization that is not itself involved in the production or

⁵ Audrey Aubard, FAO Technical Cooperation Project (TCP) "Support the establishment of Geographical Indication (GI) System in the Philippines" (TCP/PHI/3703/C1)

⁶ Rule 101 (c), Trademark Regulations of 2023

commercial trade of the goods concerned. This distinction is significant, as the owner of a certification mark is responsible for ensuring that products bearing the mark conform to the certified characteristics or qualities. Thus, the entity which owns the registered certification mark has the right to prohibit the use of that mark by persons whose products do not comply with the requirements set out in the regulations or standards.

Certification marks are the most similar in terms of function to GIs. They are used to show the compliance with certain defined standards; among these standards there could be the origin of production. However, the main difference is that the entity which holds the certification mark cannot use it for its own products. This principle is also referred to as the “anti-use by owner rule.”⁷ It can only certify the products of its members or users.

Besides the general differences between GIs and trademarks (see above) that apply, the following elements can be identified:

GIs	Certification marks
The entity which registers the GI can use it on its own products.	The entity which holds the certification mark cannot use it for its own products. It can only certify the products of its users.
Scope of protection: Absolute protection of the name for all legitimate producers in the area	Scope of protection: Protection of a name in combination with a logo for any producer or organization that meets the standards attached to the certification mark

2.7 Complementarity between GIs and Trademarks

In several countries, producers use both GIs and trademarks in their marketing strategy:

GIs usually protect the geographical name of a product produced by a group/association of producers. The trademark can be used to complement the protection, for example a single producer within that group who wants to protect his own trademark.

If GIs protect the name, the trademark will give the opportunity to create a “visual” or a logo of to further visually identify the GI name to be promoted and recognised by the consumers. However, this trademark shall not prejudice/conflict with the GI. Some specific conditions exist for the GI and the trademark to co-exist in practice:

The owner of the trademark can be either the GI group of producers (or GI owner) or a GI producer who is a member of the group of producers or, in some instances, recognized as an authorized GI user.

⁷ WIPO/GEO/SFO/03/01, June 12, 2003

The owner of the trademark cannot appropriate the name of the GI, already protected which is subject to a disclaimer inside the trademark application. The owner of the trademark can establish some conditions of use of this trademark: how the visual or logos can be used (size, colour etc...), in which tools they can be used, among other things.⁸

Examples of trademark, certification mark used in collaboration with a GI:

In these examples' cases, you can see the use of a specific trademark, certification mark and GI. Only products that comply with the product specifications and verified by the control body can use the GI in combination with trademark or certification mark or on the packaging.

Certification Mark USPTO Reg. 1632726	Geographical Indications
	DARJEELING⁹
Class 30: Tea	Tea
THE CERTIFICATION MARK, AS USED BY PERSONS AUTHORIZED BY CERTIFIER, CERTIFIES THAT A BLEND OF TEA CONTAINS AT LEAST ONE HUNDRED PERCENT (100%) TEA ORIGINATING IN THE DARJEELING REGION OF INDIA, AND THAT THE BLEND MEETS OTHER SPECIFICATIONS ESTABLISHED BY THE CERTIFIER.	
TEA BOARD OF INDIA	TEA BOARD OF INDIA

Certification Mark USPTO Reg. 1160492	Trademark Switzerland (No. P-557185)	Geographical Indications EU: PGI-CO-0467
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⁸ FAO Technical Cooperation Project (TCP) "Support the establishment of Geographical Indication (GI) System in the Philippines" (TCP/PHI/3703/C1)

⁹ "Darjeeling" is the first Gi application in India filed on 27 October 2003 @ https://ipindia.gov.in/writereaddata/Portal/Images/pdf/State_wise_Registered_GI_of_India.pdf

COLOMBIAN		Café de Colombia
The certification mark, as used by third parties authorized by the certifier, certifies that the goods are grown in the Republic of Colombia and meet specific standards as to growth, harvesting, processing, overall composition and characteristics, and other quality factors, as published, overseen, and modified under the authority of the mark owner, and that such goods have been approved for export to the United States.		

	
Trademark IT, 26.03.2019, 302019000021107	Geographical Indication
	Parmigiano Reggiano

Class 29: Milk; albumin milk; curd; condensed milk; peanut milk; coconut milk; almond milk; rice milk; soya milk; whey; milk substitutes; milk beverages, milk predominating; oat milk; powdered milk; butter; peanut butter; coconut butter; buttercream; cheese; cheese substitutes; cottage cheese fritters; yogurt; margarine; milk products; cream [dairy products]; whipped cream; dairy-based dips; salted meats; bouillon; game, not live; meat; arrangements of processed fruit; jams; meat, tinned; fruits, tinned; croquettes; meat extracts; potato flakes; dried fruits; frozen fruits; fruit, preserved; fruit, stewed; crystallized fruits; jellies for food; edible fats; lard; vegetables, preserved; vegetables, cooked; vegetables, dried; fruit salads; vegetable salads; marmalade; oils for food; tomato puree; fish, not live; poultry, not live; charcuterie; seeds, prepared; pickles; eggs; milk shakes.	Dairy Produce; Birds' Eggs; Natural Honey; Edible Products Of Animal Origin, Not Elsewhere Specified or Included; Cheese And Curd
LATTERIA SORESINA SOCIETA' COOPERATIVA AGRICOLA	CONSORZIO DEL FORMAGGIO PARMIGIANO REGGIANO

CHAPTER III — LEGAL FRAMEWORK FOR GIs IN THE PHILIPPINES

3.1 Philippine Legal Framework (Republic Act No. 8293)

The registration and protection of GIs in the Philippines are grounded in both domestic legislation and international obligations that recognize GIs as a distinct form of intellectual property.

The primary legal basis is Republic Act No. 8293, otherwise known as the Intellectual Property Code of the Philippines, as amended.

Under Section 4(1)(c) of the IP Code, intellectual property includes “geographic indications,” thereby confirming that GIs form part of the intellectual property rights protected under Philippine law. Section 5(b) empowers the Intellectual Property Office of the Philippines (IPOPHL) to examine applications for the registration of marks, geographic indications, industrial designs, integrated circuits, and other forms of intellectual property rights, and to issue the corresponding certificates of registration. Complementing this, Section 9.1 designates the Bureau of Trademarks (BOT) as the office responsible for the search and examination of applications for the registration of marks and geographic indications, and the issuance of certificates of registration.

To implement these provisions, IPOPHL promulgated in 2022 the Rules and Regulations on Geographical Indications (RR-GI) through Memorandum Circular No. 2022-022, which set out the detailed procedures, substantive requirements, and administrative framework for the registration and protection of GIs. These Rules establish a *sui generis* system, separate and distinct from trademark protection, and institutionalize the Geographical Indications Register under the supervision of the BOT Director, who also serves as the GI Registrar.

At the international level, the Philippine GI regime is consistent with the country’s obligations under the TRIPS Agreement administered by the World Trade Organization (WTO). Articles 22 to 24 of TRIPS Agreement set the minimum standards of protection for GIs, requiring member states to provide legal means to prevent the misuse or misrepresentation of geographical indications.

Collectively, these legal instruments form the basis for the development and implementation of the Philippine GI system and guide the examination of applications to ensure compliance with national policy and international commitments.

3.2 TRIPS Agreement on Geographical Indications

The Agreement on Trade-Related Aspects of Intellectual Property Rights is a key international treaty administered by the WTO. It establishes minimum standards for the protection and enforcement of intellectual property rights among WTO members, including GIs. Adopted in 1994 as part of the Uruguay Round Agreements, TRIPS reflects a global consensus on the role of intellectual property in promoting innovation, fair trade, and sustainable economic development.

Article 22 sets the basic international standard for the protection of GI. It begins in paragraph 1 by defining a GI as an indication that identifies a good as originating in the territory of a Member, or in a region or locality within that territory, where a given quality, reputation, or other characteristic of the good is essentially attributable to its geographical origin. This establishes the core idea that certain products derive distinct qualities or reputation from their place of origin and that this connection warrants legal recognition.

Paragraph 2 requires WTO Members to provide the legal means for interested parties to prevent two main forms of misuse: (a) any use of a GI that misleads the public as to the true geographical origin of goods, and (b) any use that constitutes unfair competition within the meaning of Article 10bis of the Paris Convention. The provision thereby links GI protection with consumer protection and fair-trade principles, ensuring that markets remain transparent and that producers of genuine origin-based products are not disadvantaged by misleading practices.

Article 22 (3) addresses the relationship between GIs and trademarks. It provides that a trademark which contains or consists of a geographical indication must be refused registration or invalidated, either ex officio if Member's legislation provides or at the request of an interested party, if the goods do not originate in the indicated area and if use of the mark would mislead the public as to origin. This provision prevents the registration of misleading trademarks and harmonizes GI protection with trademark systems.

Article 22 (4) extends protection to situations where a GI, though literally true as to the geographical area, falsely represents to the public that the goods originate elsewhere. In other words, even if the geographical indication is factually correct, its use may still be prohibited when it creates a false impression of origin. This ensures that protection under Article 22 is not limited to outright falsification but also covers more subtle forms of consumer deception, reinforcing the integrity of origin-based labelling and fair competition in trade.

Further provisions on GI protection appear in Articles 23 and 24, which set out enhanced protection for wines and spirits and outline exceptions and negotiation mechanisms for member states.

While TRIPS Agreement obliges members to provide effective legal means to prevent the misuse or misrepresentation of GIs, it does not prescribe a specific form of protection. Each member country retains the discretion to determine the mechanism by which GIs are protected, whether through trademark law, unfair competition law, consumer protection, or a distinct (*sui generis*) system, as adopted by the Philippines.

This flexibility has allowed WTO members to tailor their GI systems to their legal traditions and policy priorities. Some jurisdictions protect GIs through collective or certification marks, while others, such as the European Union, implement a stand-alone registration and protection regime.

In fulfillment of its TRIPS obligations, the Philippines incorporated GIs into the Intellectual Property Code (Sections 4, 5, and 9) and gave full effect to their protection through the RR-GI. These Rules establish the procedural and substantive framework for GI registration,

aligning the Philippine system with international standards while accommodating domestic socio-economic and cultural contexts.

The TRIPS Agreement, therefore, serves as both the legal foundation and policy rationale for the Philippine GI system, ensuring that protection of origin-based products supports rural development, cultural preservation, and fair market differentiation consistent with international norms.

CHAPTER IV - DEFINITION AND COMPONENTS OF GEOGRAPHICAL INDICATIONS

4.1 Definition under Rule 2(h) of the RR-GI

Under Rule 2 (h) of the RR-GI, a geographical indication is defined as:

“an indication which identifies a good as originating in a territory, region or locality, where a given quality, reputation or other characteristic of the good is essentially attributable to its geographical origin and/or human factors.”

4.2 Comparison with TRIPS Article 22.1

This definition closely follows Article 22.1 of the TRIPS Agreement, which defines GIs as:

“indications which identify a good as originating in the territory of a Member, or a region or locality in that territory, where a given quality, reputation or other characteristic of the good is essentially attributable to its geographical origin.”

Both definitions express the same core principle: a product’s distinctiveness arises from a causal relationship between its quality, reputation, or other characteristics (QRC) and its place of origin. Each emphasizes three essential elements:

1. The **origin** of the goods;
2. The **qualities, reputation, or characteristics** that distinguish them; and
3. The essential link connecting those attributes to the geographical environment.

The Philippine definition expands upon the TRIPS formulation by explicitly recognizing “human factors” as an additional factor for causal link. This inclusion acknowledges that a product’s identity may derive not only from natural factors, such as soil, climate, or topography, but also from human contributions, including traditional knowledge, craftsmanship, and community practices which are passed down through generations.

By incorporating “and/or human factors,” the RR-GI definition covers a broader range of products, such as handicrafts, textiles, and industrial goods, whose distinctive features stem primarily from human skill and cultural heritage rather than from environmental conditions alone.

4.3 Components of the Definition

(a) Indication

Under Rule 2 (m) it refers to a name of a territory, region or locality; or under exceptional circumstances, the name of a country. It may take various forms:

- A **place name** (e.g., *Baguio, Guimaras, Taal*); or
- A **descriptive expression** evoking a region (e.g., *Cordillera Highland*)

The indication need not be the exact name of a town or province, but it must be commonly understood by consumers and producers as referring to the place of origin. Examiners must assess whether the indication is recognized as referring to a specific location by consumers and producers.

(b) Goods

“Good” refers to tangible products whose quality, characteristics, or reputation stems from their geographical origin. It may refer to agricultural or natural products like gems or precious stones, processed and unprocessed, including foodstuff and alcoholic beverages, or any product of handicraft or industry.

Examples:

- *Agricultural products*: fruits, rice, coffee
- *Foodstuff*¹⁰: cheese, ham, fish sauce, vinegar
- *Handicrafts*: woven textiles, woodcraft
- *Industrial*: knives, glass, jewelry, ceramics



GI may not cover services. The examiner must confirm that the GI application relates to tangible goods and not a brand, marketing term, or business name.

Example of Industrial GIs

Couteau de Laguiole	Porcelaine de Limoges
	
Cutlery / Coutellerie	Ceramic products

(c) Originating in a Territory, Region, or Locality

This element requires that the goods come from the identified geographical area. There must be a clear and objectively defined territory, which can be delineated by administrative boundaries, natural landmarks, or precise maps and coordinates.

Applicants must demonstrate that:

¹⁰ relates to any substance or product, whether processed, partially processed or unprocessed, intended to be, or reasonably expected to be ingested by humans. (<https://ec.europa.eu/eurostat/statistics-explained/index.php?title=Glossary:Food>); any substance that is used as food or to make food: (<https://dictionary.cambridge.org/dictionary/english/foodstuff>)

- The production, processing, and/or preparation of the goods occurs within the designated area; and
- Only those producers operating within that area may use the GI.

The geographical area should be specifically and consistently defined in the technical specifications. Ambiguity or overbroad claims should be grounds for objection or clarification.

(d) Given Quality, Reputation, or Other Characteristic

This phrase identifies the qualitative attributes or intangible goodwill connecting the product to its place. The goods must possess at least one distinguishing feature that sets them apart from similar products not produced in the area. This feature must fall into one of the following categories:

- **Quality:** Measurable attributes such as taste, texture, composition, durability, or physical appearance;
- **Reputation:** Consumer recognition or historical prestige, even in the absence of measurable quality differences;
- **Other Characteristic:** Unique traits, such as traditional production methods, biodiversity, or cultural significance.

The applicant must substantiate these claims through evidence, including scientific studies, historical records, consumer surveys, or certification standards.

Example of GI based on Reputation



Andruty kaliskie (Poland)

Round, thin wafers with regular edges and a slightly shiny, smooth surface which varies in colour, 5 to 17 cm in diameter and 0,8 to 1,5 mm thick. Their colour is light cream to straw through to golden brown. They are slightly sweet in taste, delicate, crisp, dry and smooth.

Geographical area: Within the administrative boundaries of the city of Kalisz, Kalisz District, Greater Poland Province, Poland.

Link: The product's link to the region is based on its reputation; evidence shows that it has been produced here since the mid-19th century. Kalisz, the town with the oldest written records in Poland, became a melting pot of different nationalities and cultures as early as the Middle Ages. The evidence suggests that Kalisz wafers were created as the result of cultural interaction and represent a fusion of the culinary habits and customs of different national and religious groups which had lived in the city for centuries.¹¹

¹¹ [https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:52008XC0911\(04\)](https://eur-lex.europa.eu/legal-content/EN/TXT/HTML/?uri=CELEX:52008XC0911(04))

(e) Causal Link (Essentially Attributable to Geographical Origin and/or Human Factors)

This final and critical element establishes the causal link between the product's characteristic(s) and the geographical origin. It is not sufficient that goods merely come from a certain area; their QRC must result from that origin and/or human factors.

This linkage may be:

- Natural (e.g., soil type, microclimate, altitude);
- Human (e.g., traditional knowledge, artisanal skill, relevant skills i.e. handling of adverse condition for proper cheese maturation¹²);
- Or a combination of both.

Examiners must ensure that the applicant provides a clear explanation and supporting evidence showing that, without the geographical and/or human factors, the goods would not possess the same quality, reputation or characteristics.

¹² GIs Specification and Control Mechanisms, Dr. Habil, Professor, University of Warsaw, Faculty of Law and Administration, WIPO-SAKPATENTI Executive Program on Geographical Indications

CHAPTER V - WHO MAY FILE A GI APPLICATION

5.1 Community-Based Nature of GIs

GI is fundamentally a community right. It protects the collective interests of producers within a defined geographical area who share responsibility for maintaining the product's quality, reputation and other characteristics. In principle, GIs are filed and administered by producer groups or associations, not by individuals. This ensures that the right serves the entire community and that no single person can monopolize a name representing shared heritage or collective know-how.

Under Rule 7 of the Philippine RR-GI, only producer groups, cooperatives, associations, local government units, competent authorities, and recognized cultural or indigenous communities may file a GI application. Individual producers cannot do so.

However, under the European Union's Regulation on Geographical Indications for Craft and Industrial Products¹³, a limited exception exists. An individual producer may file a GI application only if:

1. The person concerned is the sole producer willing to submit an application; and
2. The geographical area is a distinct part of a territory, defined independently of property boundaries, whose characteristics differ clearly from those of neighboring areas, or where the product's characteristics differ from products made nearby.

This exception applies narrowly and is intended to preserve traditional, small-scale, or declining productions where collective representation is impracticable. Even in such cases, the resulting GI remains a collective right, open to future producers who meet the same product specification within the defined area.

The overarching principle remains that a GI is a collective asset linked to a place and its community, not to any individual proprietor. The system is designed to foster shared responsibility, uphold production standards, and ensure that the reputation associated with the geographical name benefits all legitimate producers within the area.

5.2 Eligible Applicants under Rule 7 of the RR-GI

Under Rule 7 of the RR-GI, the following entities may apply for the registration of a geographical indication:

1. **Producer Groups or Associations**
 - Groups of natural or juridical persons engaged in the extraction, production, or manufacture of goods identified by the GI.
 - Includes cooperatives, federations, or other duly organized associations representing the relevant producers or stakeholders.

¹³ Article 8, Regulation (EU) 2023/2411 of the European Parliament and of the Council of 18 October 2023 on the protection of geographical indications for craft and industrial products and amending Regulations (EU) 2017/1001 and (EU) 2019/1753

2. **Competent Authorities or Government Agencies**

- National or regional bodies involved in the development, regulation, or promotion of origin-based products (e.g., Department of Agriculture, Department of Trade and Industry).

3. **Local Government Units (LGUs)**

- LGUs having jurisdiction over the geographical area from which the goods originate. The LGU also functions as a certifying authority, verifying that products bearing the GI comply with the registered product specification and originate within the designated area.
- This role reinforces authenticity, accountability, and local governance participation in the administration of the GI.

4. **Representatives of Foreign Governments or Foreign Producer Groups**

- Foreign producers' group, or a representative of a foreign government may file a GI application on behalf of the producers of that foreign country, provided that the laws of such country grant the same rights and protection to Philippine nationals and their GIs (reciprocity principle).
- This provision ensures mutual recognition and fair treatment among countries in the protection of origin-based goods.
- To ensure proper legal representation, Rules 8 and 9 of the RR-GI further set the procedural and qualification requirements for foreign applicants.

5. **Organizations or Associations Entrusted with the Regulation and/or Protection of GIs**

- Entities authorized or entrusted by the producers to regulate, control, or protect the GI, including ensuring compliance with product specifications and managing enforcement actions.
- Such organizations act as representative and supervisory bodies, maintaining the reputation and quality standards associated with the GI.

Illustrative Example:



The Scotch Whisky Association (TSWA) is a trade association whose members account for more than 95% of Scotch whisky production. Its objectives include the promotion of the Scotch whisky industry both domestically and internationally, as well as the protection of its interests worldwide. To this end, TSWA undertakes and participates in legal proceedings in various jurisdictions to defend the interests of the Scotch whisky trade, including the protection and enforcement of rights associated with the geographical indication "Scotch Whisky." Source: <https://www.scotch-whisky.org.uk/who-we-are/>, last visited on 10 October 2025

6. **Indigenous Cultural Communities (ICCs) or Associations Representing Them**
Indigenous groups or their duly recognized organizations that produce or safeguard goods whose characteristics are rooted in indigenous traditions or ancestral domains.

To ensure orderly representation and proper service of official communications, **Rules 8 and 9** further set the procedural and qualification requirements for non-Filipino applicants.

5.3 Procedural Requirements for Foreign Applicants (Rules 8 and 9, RR-GI / IPOPHL Memorandum Circular No. 2022-022)

Rule 8 – Representation; Address for Service

If the applicant is not domiciled in the Philippines and does not have a real and effective commercial establishment in the country, it shall designate, by a written document filed with the Office, the name and address of a Philippine resident or a representative from the Embassy, Consulate, or Chamber of Commerce in the Philippines of the country where the goods originated, who may be served notices or process in any proceeding affecting the geographical indication.

Such notice or process shall be deemed properly served by leaving a copy at the address specified in the last designation filed.

If the person so designated cannot be found at the given address, service may instead be made upon the Registrar.

This rule ensures that all foreign applicants maintain a reachable representative within the Philippines for purposes of notice, communication, and other proceedings.

Rule 9 – Additional Qualifications for Non-Filipino Applicants

A non-Filipino applicant, meaning one that is neither a domestic organization/association, nor a local government unit, body, or agency that seeks to register a GI originating from a foreign country must meet at least one of the following qualifications:

1. It is a juridical entity incorporated or organized in a country that is a party to the WTO Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS) or to another international convention or agreement on the protection of GIs to which the Philippines is also a party; or
2. It is domiciled in or has a real and effective industrial or commercial establishment in, the Philippines or in a country that is a party to an international convention or agreement on GIs to which the Philippines is likewise a party.

These qualifications ensure that foreign applicants originate from jurisdictions with reciprocal legal obligations toward the Philippines, consistent with the country's international commitments under TRIPS.

CHAPTER VI — REQUIREMENTS OF A GI APPLICATION (Rule 10 of the RR-GI)

A GI application must be filed with the Registrar of Geographical Indications (Bureau of Trademarks, IPOP HL) in the prescribed form, written either in Filipino or English. It must contain the following mandatory particulars, accompanied by all supporting documents and certifications.

Prescribed forms (GI Form see Annex “A”)

6.1 Name and Address of the Applicant

- The complete legal name, principal address, and contact details of the applicant must be provided.
- Where the applicant is an association or group, its registered office address and authorized signatory must be clearly identified.



Verify that the applicant corresponds to one of the eligible entities under Rule 7 (e.g., producer group, LGU, competent authority, etc.).

6.2 State of Incorporation, Domicile, or Effective Establishment

- For juridical entities, state the country of incorporation or the law under which it was organized and exists; or
- State where the applicant has domicile or a real and effective industrial or commercial establishment.

Purpose: Confirms the applicant’s legal personality and its qualification under Rule 9 for foreign applicants.

6.3 Name of the Geographical Indication Sought to be Registered

The name or indication must be stated exactly as used in trade or tradition, including any variants or translations where relevant.

The indication must be capable of identifying goods as originating from a specific territory, region, or locality.



It is important that a well-known geographical name is not used merely to take advantage of its reputation. The applicant must justify that the use of such name is supported by its own established history or tradition.

The presence of a geographical name or name with geographical significance is compulsory in the name of a GI so in the application. A single geographical name or the combination of the name of the product + the geographical name can be applied as a GI.

6.3.1 Disclaimer of Generic, Customary, or Common Terms (Rule 14, RR-GI)

Under Rule 14, a generic, customary, or common name forming part of a geographical indication must be disclaimed in the application. This rule ensures that no producer or group of producers may monopolize words or terms that are in common use to identify a type of product rather than its geographical origin.

This maintains a fair balance between protecting community rights over a product of origin and preserving the public domain for terms that describe product categories.

A term is considered generic, customary, or common if it is understood by the general public in the Philippines, or by the relevant consumers of the goods, to refer to the product itself, rather than to its geographical origin.

In other words, the term names the type of good, not the place where it comes from. Such terms cannot be monopolized, even when combined with a protected geographical name.

Common indicators of genericity include:

- Frequent use of the term in trade to denote a product category, irrespective of origin;
- Use by multiple producers or regions;
- Longstanding consumer recognition of the term as describing the good itself; or
- Relevant term can be found in the Codex Alimentarius International Food Standards

If a term appears in the Codex Alimentarius, this may be taken as evidence that the term is used internationally to describe a type of product rather than its geographical origin. As such, Codex references are often relied upon in examinations, oppositions, or third-party observations to argue that a term has become a common or generic name.

Illustrative Example:

“Guimaras Mangoes”

In the GI *“Guimaras Mangoes”*, the term **“Guimaras”** designates the geographical origin, the island province of Guimaras, while **“Mangoes”** identifies the product category.

Because “mangoes” is a generic term for the fruit itself, it was required to be disclaimed under Rule 14. Protection attaches only to “Guimaras,” insofar as it identifies mangoes that originate from the island and possess qualities essentially attributable to its soil, climate, and cultivation methods.

This distinction clarifies that while the GI *“Guimaras Mangoes”* as a whole is protected, the word *“mangoes”* remains free for general use by other producers or traders.

The term “brie”

“Brie” appears in the Codex Alimentarius, specifically in the Codex Standard for Cheese (CXS 277-1973) and related cheese standards, where it is used as a generic designation for a type of soft, mould-ripened cheese. Thus, if **Brie de Meaux** is applied as a GI, “brie” should be disclaimed.

The screenshot shows the Codex Alimentarius website interface. At the top, there is a navigation bar with links: Home, About Codex, Codex Texts, Themes, Committees, Meetings, Resources, Publications, News and Events, and Login. Below the navigation bar, the breadcrumb trail reads: codexalimentarius > Codex Texts > Standards. The main heading is "Standards". Below this, there is a search bar with the text "brie" entered. The search results are displayed in a table with columns: Reference, Title, Committee, Last modified, and language options (EN, FR, ES, AR, ZH, RU). The table shows one result: CXS 277-1973, Standard for Brie, CCMP, 2022. Below the table, it says "Showing 1 to 1 of 1 entries (filtered from 237 total entries)". At the bottom, there is a footer with links: About us, Contact us, FAQs, Circular Letters, Sitemap, Help, Data Protection and Privacy Notice, and Copyright / Disclaimer. There are also social media icons for Facebook, Twitter, and YouTube.

Reference	Title	Committee	Last modified	EN	FR	ES	AR	ZH	RU
CXS 277-1973	Standard for Brie	CCMP	2022	✓	✓	✓	✗	✗	✗

Showing 1 to 1 of 1 entries (filtered from 237 total entries)

6.3.2 Rationale and International Alignment

The rule on disclaimers under Rule 14 is consistent with Article 24.6 of the TRIPS Agreement, which provides that:

“Nothing in this Section shall require a Member to prevent continued and similar use of a particular geographical indication of another Member with respect to goods or services by any of its nationals or domiciliaries who have used that geographical indication in a continuous manner with regard to the same or related goods or services in the territory of that Member either (a) for at least 10 years preceding 15 April 1994, or (b) in good faith preceding that date, or to prevent continued and similar use of a geographical indication of another Member identifying wines or spirits with respect to goods or services where the relevant indication is identical with the term customary in common language as the common name for such goods or services in the territory of that Member.”

In essence, Article 24.6 recognizes the right of WTO Members to refuse or limit GI protection where a term has become a common name for certain goods in their own territory. This means that the determination of whether a term is generic or, in TRIPS language, a *common name*, depends on consumer perception within the Philippines, not on how the term is treated in its country of origin.

Accordingly, even if a GI remains protected abroad, the Philippines may require a disclaimer or limit protection if the term is already understood locally as the common or ordinary name of the product. This approach ensures consistency with international law while maintaining clarity for consumers and fair access for all traders using legitimate product names.

6.3.3 Examination and Application of Disclaimers

During examination, the examiner must determine whether any component of the applied GI is generic or customary, or common name and therefore subject to disclaimer.

❖ Examiner's Assessment

1. Identify composite GIs (e.g., *Guimaras Mangoes*, *Benguet Coffee*, *Ilocos Vinegar*).
2. Separate the **geographical element** from the **product term**.
3. Determine whether the product term is used by consumers in the Philippines as a generic or customary, or common name for the goods, independent of origin.

❖ Evidence to Consider

In determining whether a component of the applied GI is generic, customary, or common, the examiner may consider, among others, the following forms of evidence:

1. Dictionary, encyclopedia, and technical references indicating whether the term is used as the ordinary name of the goods;
2. Codex Alimentarius standards, commodity standards, or other internationally recognized product standards identifying the term as a product category or product type;
3. Marketplace evidence, including product labels, packaging, menus, catalogues, online listings, advertisements, and retail displays showing use of the term by different traders regardless of origin;
4. Trade and industry usage, including references from producer groups, importers, distributors, retailers, restaurants, industry associations, among others;
5. Consumer perception evidence, such as surveys, media articles, publications, reviews, or other materials showing how the relevant public in the Philippines understands the term;
6. Prior examination records, registrations, disclaimers, third-party observations, or decisions involving the same or similar term; and
7. Evidence submitted by the applicant or third parties supporting or disputing the claim that the term functions as a geographical indication rather than as the common name of the goods.

❖ Effect of a Disclaimer

A disclaimer does not remove the generic term from the GI name but clarifies that:

- The applicant does not claim exclusive rights to the disclaimed term; and
- Protection extends only to the distinctive geographical component and its combination with the product name as a whole.

Example:

- GI applied for: Guimaras Mangoes

- Disclaimer: “Registration of this Geographical Indication gives no exclusive right to the use of the term ‘Mangoes,’ which is disclaimed apart from the indication as a whole.”

This preserves both the collective right over “Guimaras Mangoes” and the public’s right to continue using “mangoes” generically.

6.4 The Type/Category of Goods to Which the GI Applies

The application must specify the type or category of goods covered by the geographical indication. Under current Philippine practice, the recognized categories include:

- **Wines:** such as grape-based or fruit-based wines whose characteristics are linked to their geographical origin;
- **Spirits:** distilled beverages produced or matured within the specified area (e.g., sugarcane, fruit, or grain-based spirits);
- **Foodstuffs:** processed or prepared foods whose QRC are attributable to the geographical origin (or local ingredients) and/or traditional methods;
- **Agricultural products:** crops, fruits, vegetables, or other natural produce whose qualities result from specific soil, climate, or cultivation conditions;
- **Handicrafts:** artisan or craft products (e.g., woven textiles, pottery, woodwork) whose distinctive character derives primarily from human skill and cultural tradition within the locality; and
- **Industrial Products:** manufactured or semi-manufactured goods (e.g., knives, cutlery, or metalware) whose unique features, design, or reputation are linked to the local’s technical know-how, production techniques, or cultural heritage.

While the application form provides a checklist of the above categories, the applicant must also specify the particular kind or nature of goods to which the GI applies. This ensures clarity in determining the scope of protection and the details provided in the Manual of Specifications.

Example: The GI “Guimaras Mangoes” is classified under the agricultural product category, but the kind of goods must be specified as fresh mangoes to distinguish it from other mango-based products such as dried or processed fruit.

6.5 Description of the Geographical Area

The applicant should provide a clear and detailed description of the geographical area to which the GI applies, including territorial boundaries and delimitation.

The area should correspond to the production, processing, or preparation zones relevant to the product.



Verify the geographical scope by reviewing the submitted maps, boundary descriptions, or certifications issued by the concerned LGUs or official mapping authorities.

6.6. Description of the Specific Quality, Reputation, or Other Characteristic (QRC) of the Goods and How It Is Essentially Attributable to the Geographical Origin and/or Human Factors

The application must contain a detailed description of the goods' specific QRC that distinguishes them from similar products, and an explanation of how these attributes are essentially attributable to their geographical origin and/or human factors.

This requirement is the core substantive element of a GI application. It establishes the causal link, the defining relationship between the product and the place (and, where applicable, the people) that produce it.

6.6.1 Quality, Reputation, or Other Characteristic (QRC)

The applicant must identify at least **one** of the following bases for distinctiveness:

- **Quality:** measurable or objectively verifiable features of the product that result from geographical conditions. These may include physical, chemical, or sensory attributes such as taste, aroma, texture, color, or durability.

Example: The sweetness and thin peel of *Guimaras Mangoes* are linked to the island's limestone-rich soil and dry microclimate.

- **Reputation:** the product's public recognition, renown, or goodwill associated with its origin, often supported by historical records, local ordinances, publications, marketing materials, or consumer perception.

Example: *Sagada Coffee* has gained a longstanding reputation for high quality due to its origin in the Cordillera highlands.

- **Other Characteristic:** any feature, not strictly a quality or reputation, that is typical of the area, such as traditional production techniques, local biodiversity, or specific cultural or artisanal methods.

Example: The hand-weaving technique of Lake Sebu *Tnalak* reflects a cultural tradition passed down through generations.



At least one of these three - quality, reputation, or other characteristic, must be demonstrated and supported by evidence.

6.6.2 Causal Link: Essentially Attributable to Geographical Origin and/or Human Factors

The applicant must explain and substantiate how the identified QRC is essentially attributable to either:

- The **geographical origin** - including natural features such as soil composition, altitude, climate, water sources, or ecosystem;

- The **human factors** - encompassing traditional knowledge, craftsmanship, processing techniques, or community practices; or
- A **combination** of both, where human intervention interacts with the natural environment to create the distinctive product.

Example:

The sweetness and aroma of *Guimaras Mangoes* are essentially attributable to a combination of the island's climatic conditions (geographical) and cultivation methods (human) developed by local farmers.

The description must show that, without the geographical or human factors, the product would not possess the same qualities or reputation.

6.7 Copy of the Manual of Specifications (MoS)

The application must include a copy of the MOS duly formulated and adopted by the stakeholders or the governing board or council of the producer group, if any.

Under Rule 2(p) of the RR-GI refers to a document that contains the following essential information:

1. **The name to be protected as a Geographical Indication;**
2. **A description of the goods** to which the GI applies, including their physical, chemical, or sensory characteristics;
3. **The delimited geographical area** where the goods are produced, including its territorial boundaries, natural features, or administrative limits;
4. **An explanation of the link** between the geographical area and the goods' quality, reputation, or other characteristic, demonstrating how these are essentially attributable to geographical origin and/or human factors;
5. **A detailed description of the production process**, including raw materials, processing steps, and traditional or prescribed methods specific to the area;
6. **The quality control system and standards** applied to ensure compliance with the defined specifications, including inspection, certification, or traceability procedures; and
7. **Labeling rules**, specifying how the GI name may appear on products, packaging, or promotional materials, to prevent misleading use or misrepresentation.

For examiners, the MoS is a primary reference document when assessing compliance with the requirements to be registered as a GI, particularly, Rule 10(f) on the causal link between product's quality, reputation or other characteristics and geographical or human factors. It is also a vital tool in post-registration monitoring, ensuring that all authorized users adhere to the same standards and production conditions set out in the registration.

6.8 Format and Submission

The MoS must be submitted as a written and signed document, in either Filipino or English, and attached to the GI application.

It may include annexes such as maps, charts, laboratory reports, or certification standards issued by competent authorities.



The examiner may require clarifications or updated versions if the submitted MoS is incomplete or inconsistent with the details provided in the application form.

Further Guidance

A detailed discussion of the structure and content of the Manual of Specifications is discussed in a separate chapter of this Manual.

That section will guide both applicants and examiners in ensuring that the MoS meets the evidentiary and technical standards required for GI registration and post-registration compliance.

6.9 Certification from the Concerned Government Agency or Equivalent Independent Body

This certification performs a validation and corroborative function, confirming the scientific, technical, or factual basis of the claims made in the application, particularly regarding the product's specific quality, reputation, or other characteristic and its essential link to geographical origin and/or human factors.

The application must include a certification that:

1. Validates the causal link between the specific quality, reputation, or other characteristic of the goods and the geographical area where they originate or are produced (as described in paragraph [f]); and
2. Confirms the technical information and product specifications contained in the Manual of Specifications.

Form and Content of the Certification

The certification must be in writing, issued on the certifying agency's official letterhead, duly signed by the authorized official, and include:

- The name of the product and the applicant organization;
- A statement validating the causal link between the product's qualities and its geographical origin and/or human factors;
- Confirmation of the accuracy and completeness of the technical information in the Manual of Specifications; and
- The date of issuance, official seal, and reference number (if applicable).

If several agencies share jurisdiction (e.g., DA and DOST), joint or multiple certifications may be accepted.

Example: For an agricultural product, the certification may be issued by the Department of Agriculture or Bureau of Plant Industry; for a textile, by the Philippine Fiber Industry Development Authority (PhilFIDA) or Department of Science and Technology - Philippine Textile Research Institute (DOST-PTRI), another competent certifying body.



- *The examiner must confirm that the certification originates from a competent government agency or recognized independent body, and that it addresses both the causal link and technical validation requirements under Rule 10(h)(i) and (ii).*
- *Certifications that merely express support or endorsement without technical verification do not satisfy the rule.*
- *If the certification is missing, incomplete, or issued by an entity without relevant competence, the examiner should issue a clarification or deficiency notice.*

6.10 Registrar's Discretionary Requirements

Under the final paragraph of Rule 10, the Registrar may require additional details or documents as necessary to complete the application.

These may include:

- Proof of legal personality or authority to represent the producers;
- Evidence of use or recognition of the indication;
- Maps, photos, or technical drawings; or
- Declarations supporting the claimed link between product and origin.



When examining a GI application, verify that:

- *All Rule 10 requirements are present and properly stated in the application form and additional sheets;*
- *The Manual of Specifications and certification from a competent body are signed and dated;*
- *The geographical description and QRC linkage are coherent and supported by evidence;*
- *The application is filed in English or Filipino, using the prescribed IPOPHL form; and*
- *Prescribed fees are duly paid (Annex "B" Schedule of Fees)*

If any element of the application is missing or defective, the examiner must prepare a Registrability Report outlining the deficiencies, consistent with the requirements of Rule 10 and procedures set out under Rule 13.

6.11 Proof of GI from Foreign Authorities (Rule 11, RR-GI)

Where the GI for which registration is sought relates to a country other than the Philippines, the applicant must submit evidence that the GI has obtained registration or recognition as a GI in its country or region of origin.

Such proof must be issued by a competent government agency or a private certifying entity, showing that the GI is protected or officially recognized in the country of origin or in a regional economic union (e.g., the European Union).

Other analogous documents, such as extracts from an official GI register, copy of certification or collective mark registration, or government regulations declaring protection, may also be accepted.

Foreign applicants are subject to the same procedural requirements as domestic applicants, but examination focuses mainly on verifying the authenticity and consistency of the foreign GI protection, rather than reassessing substantive elements already reviewed in the country of origin. However, where necessary, the Office may issue a Registrability Report requesting clarification or additional information.

All supporting documents, including the Manual of Specifications, must be translated into English to allow examiners to determine the scope of protection and the applicant's authority to file.

CHAPTER VII — MANUAL OF SPECIFICATIONS (MoS)

7.1 Importance and Function of Manual of Specifications (MoS)

In the examination of a GI application, the applicant bears the burden of proving that both the name and the product satisfy the legal and substantive requirements for GI protection.

The MoS, also referred to in some jurisdictions as the product specification or Code of Practice, serves as the central document in this evaluation. It is often regarded as the “passport” of the GI product, as it provides a comprehensive and objective description of the product’s essential attributes, production methods, and the link between the product and its geographical area of origin.¹⁴

Drafting the MoS is often considered to be a challenging phase in GI development, as it requires the collective participation and consensus of the key players in the value chain/members of the producers’ group. It should be objective and non-discriminatory. This process ensures that the specifications accurately reflect shared practices, uphold product authenticity, and set realistic yet enforceable quality standards.

It must be emphasized that the responsibility for drafting the MoS lies with the applicant, not with the IPOPHL. The examiner’s role is to evaluate the sufficiency and consistency of the submitted MoS, not to prepare or define its contents.

7.2 Contents of MoS

The contents of the MoS shall undergo substantive examination as part of the GI evaluation process. During this stage, examiners shall assess whether the information provided in the MoS satisfies the legal and technical requirements for registration and adequately demonstrates the link between the product and its geographical origin.

The following main components of the MoS are subject to detailed review by the examiners. Some of these elements are discussed more extensively in other chapters of this Manual.

7.2.1 Geographical Indication sought to be Registered

This may be the name of an administrative or historical region, or the name of an administrative unit (for example: a region, district etc....) or a complex name referring to a geographical origin name such as Herat Bastan Saffron in Afghanistan where Herat is the name of a province and “Bastan” means ancient in local language.

It must be noted that the larger the territory covered by a geographical name, the more difficult it is to preserve and protect it. On the other hand, protection cannot be requested for names that are not representative of the area.

¹⁴European Help Desk: Geographical Indications in the European Union @
file:///C:/Users/Irma.Morcillo/Downloads/d34e9f55d1c9d8a2f3a42973c58e7239.pdf

GI does not protect the use of geographical names included in the area. It means that the GI name will not protect other geographical names that are included in the protected geographical area (example: for the GI Café de Colombia (Coffee of Colombia), the name “Bogota” (which is a city in Colombia) will not be protected under the GI).

It is true that the geographical name does not come about by marketing choice/invention, but more by its use in the history and reputation of the product. If it is a choice, the indication must be registered as a trademark.

Name of product

The application is normally based on the name of product, to which a geographical name is attached (e.g.: Mild Cévennes onions in France, Parmigiano Reggiano for cheese, or pineapples from Benin).

The type of product name, such as “coffee”, in the GI Doi Chaang Coffee, provides information to consumers as to the kind of product involved.

The name of the product, meaning the type of product, is not compulsory. Some registered GIs for wines or cheeses refer directly to the geographical name without using the name of the product: Champagne (sparkling wine), Roquefort (cheese), Parmigiano Reggiano (cheese) etc. The geographical name is here enough to refer to the type of product.

Descriptive words should be avoided, unless they are an inherent part of the name of the product. Some examples would be “traditional”, “original”, “homemade”, “natural”, etc.

7.2.2 Description of the product

This section shall contain the precise description of the product and its modes of presentation.

Descriptors must be objective and must be capable of being analyzed or measured.

The product description can include the main organoleptic (shape, color, aroma, flavor, texture, etc.), physicochemical (dimensions, dry matter content, sugar content, etc.) or microbiological characteristics of the product. Only relevant descriptor shall be included. It is recommended to avoid overloading this part as all descriptors shall be evidenced.

When it comes to a processed product, the description can include the description of the raw materials used and their percentage of incorporation into the finished product.

The product is described using commonly accepted definitions and standards, units of measurement and commonly used or technical comparisons, without including technical characteristics or mandatory legal requirements applicable to all products of this type.

Can also be specified in this part:

- the species, breed and / or type of animal,
- the variety or varietal type used.

When the product comes from a specific breed or variety also used outside the geographical area, it is important to specify how the product differs from other products from this same breed or variety obtained outside the geographical area.

Regarding the mode of presentation, it should be indicated whether the GI is requested on the fresh or processed product, whole or cut, frozen or not, packaged or not. This allows the applicant to determine from at what stage of processing and / or up to which stage of processing the product has the characteristics of GI and therefore up to what stage it can benefit from the GI.

Examples:

For a cheese, it should be indicated whether the GI is required on the conditioned cheese or not, and at what stage of ripening it can be presented.

For asparagus does the group want it to be able to be canned? Frozen?

The product description aims to list the characteristics of the product allowing it to be objectively distinguished from other products of the same category.

Among the characteristics listed in this section, some will be included in section "Link with the geographical area" as specific features of the product linked to its geographical environment.

It is important to remember that the designation of origin and the geographical indication allow a diversity of practices, within the limits of production rules defined collectively within the specifications. This know-how helps to build up the identity of the product.

7.2.3. The geographical areas to which the GI applies

This provision refers to the classical wording «geographical area» of the GI which is an essential component of the GI system.

The geographical area refers to a territory within which the product must be produced, processed, elaborated etc. It is defined by a list of administrative entities and/or by natural geographic limits.

There is no necessary correspondence between the product area and the administrative area whose name is being requested. In fact, this kind of correspondence is extremely rare due also to the fact the administrative area can move during this history of a country.

Examples: in France, most of the GI cheeses bear the name of a city. These cities were the main place of trading these cheeses which took these names (Roquefort, Munster etc.). However, in practice, the area of production is much more important than the simple mentioned city. It covers a broader area. If we take the example of Roquefort, the city of

Roquefort is one place to process the milk into cheese, but the geographical area of sheep breeders covers the department of the Aveyron and some cities nearby this department.¹⁵

Furthermore, the various operations that take place in the zone must be listed very carefully (origin of the raw material, various stages of elaboration, the packaging, etc.), in accordance with the wishes of the applicant group.

Examples:

- selected, born, bred, where applicable slaughtered, cut up in the zone, in the case of meat,
- origin of the raw materials, transformation, even packaging in the zone for transformed products...

The applicant must have explained these criteria precisely and objectively.

“Delimitation” is the action whereby a production zone, within which the GI is produced, is circumscribed and materialized.

In concrete terms, the requested geographical area must take into account the elements that have been highlighted in order to demonstrate the link the product has with its geographic origin.

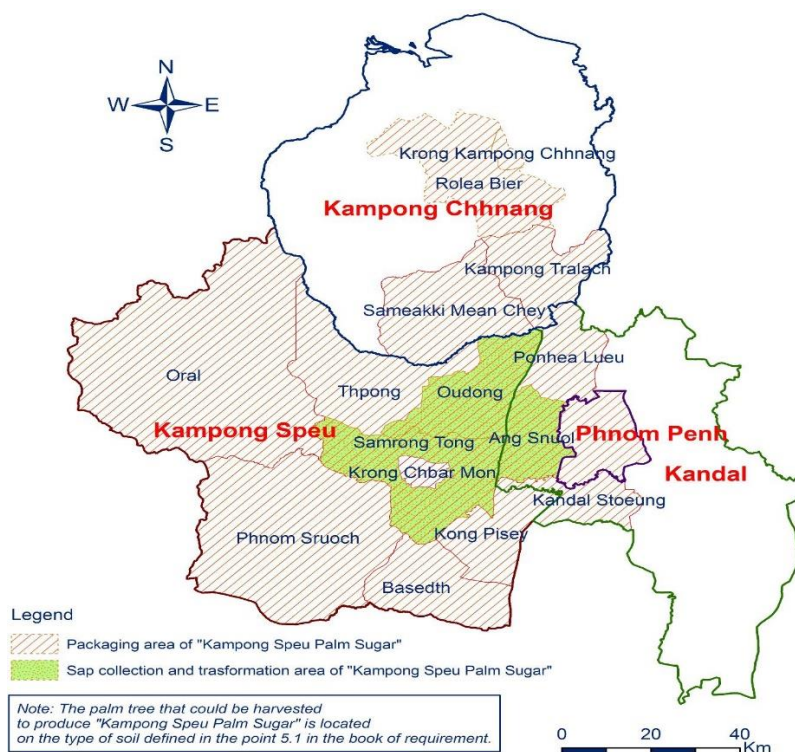
This aspect is normally integrated in the geographical area part of the specification. The map can be joined with the explanation of the geographical area. Traditionally, the map will define the exact geographical area covered by the GI, integrating all the villages, cities or regions that are taken into account. If the GI product is linked to natural factor, it can be interesting to include a topographical and/or climate map.

¹⁵ See the GI Roquefort Map:

https://www.inao.gouv.fr/var/inao_site/storage/repository/editeur/files/pdf/Cartes/AOC_Roquefort_G_201705.pdf

Example of GI “Kampong Speu Palm Sugar” in Cambodia:

Map of production and packaging area of “KAMPONG SPEU PALM SUGAR”



Source: Kampong Speu Palm Sugar Association

- ☞ The geographical area must be described with precision and must be justified by means of the criteria used for the delimitation, as presented in part related to the link.

7.2.4 The process of production

This requirement is linked to the method for obtaining the product and the technical part of the application. It is the specifications for the elaboration of the product.

Generally speaking, the methods must include a description of the techniques used as well as the final product technical criteria, highlighting the specificities of the GI product (see the paragraph "Link with the geographical origin").

The description must include all of the stages that involve the specific location of the product, including, where need be, the packaging. For example, for animal-based productions: race, breeding practices: food, weaning, suckling, etc., age at slaughter, maturation, classification of carcasses, pH, others...

For plant-based productions: varieties, date of sowing and harvesting, period for harvesting, method of harvesting, storage, shipping, firmness, sugar, etc.

For transformed productions: description of the raw materials, description of the production process, etc.

7.2.5 The quality, reputation or other characteristics of the goods and how that quality, reputation or other characteristic (as the case may be) is essentially attributable to the place from which the goods originate

This part of the MoS refers to the «link» between the product and the geographical name, substantial part of the GI application as well. This is the crucial point, which justifies that a GI is being applied for.

It must establish the link between the product, its specificities and the requested geographic name. There are three notions to bear in mind:

- ➡ a given quality,
- ➡ a reputation or
- ➡ other characteristic.

It must be explained how these notions can be related to the geographical area in question and how the resulting delimitation criteria and product specifications are to be determined.

A given quality

Here, the focus must be on a specific quality which differentiates the GI product from others. It must present a different quality, linked to the geographical origin (soils, climate, etc.) This can be highlighted using:

- the color of a meat, due to characteristic local animal feed, the color of a cheese, due to the used milk;
- a local variety or race;
- a particular soil or climate that provides a cultivated product with a unique shape or taste
- maturation or salting using salt from the area (for transformed products).

☞ It is essential to explain why the location leads to a different quality, the influence of the geography on the product and its particular characteristics.

Reputation

Reputation is most usually composed of three elements: history, reputation in the past and the current reputation.

As far as the history of the product is concerned, the importance here is to demonstrate that it has a long history with the geographical area in question.

As regards the reputation, it must be either local or national or international.

As stated above, the elements that constitute the historical reputation of the product serve to reinforce the application and should be mentioned in the sections pertaining to the determination of the geographical area or the method of elaboration.

In the “current reputation” section, the modern situation of the industry can be presented, demonstrating its local and national economic importance.

Other characteristic(s)

Reference can be made here to a specific know-how, which can be highlighted by comparing it to more usual techniques:

- breeding methods
- cultural techniques
- manufacturing processes - etc.

It is essential to explain why these characteristics are linked to the geographical area.

☞ **Each of these three points must highlight the characteristics that are a result of the geographical area, and thereby justify the geographical definition that has been decided on.**

☞ **The applicant must have formalized these criteria precisely and objectively.**

In concrete terms, the requested geographical area must take into account the elements that have been highlighted in order to demonstrate the link the product has with its geographical origin. The use of a reputed geographic name, without having established these links with its geographic origin, would not be acceptable.

☞ **These are the fundamental notions underlying the GI application, where the link is established between the product and the geographical area.**

☞ **To be complete, this section must set out, very clearly, the criteria selected to justify the geographical area. These criteria are based on the history of the product, its reputation, current production and the specific production conditions, linked to its location, all of which make it a different product.**

f) Quality Control Process and Standards

This section of the MoS must describe the mechanisms, procedures, and entities responsible for verifying that the goods bearing the GI consistently conform to the defined specifications. It serves both as a compliance assurance system for producers and as a guarantee to consumers that the goods marketed under the GI meet the expected quality and origin requirements.

The quality control framework should clearly identify:

1. The parameters and standards against which the product will be evaluated (e.g., physical, chemical, or sensory characteristics);

2. The stages of production where control is exercised, such as cultivation, processing, packaging, or labeling;
3. The body or institution responsible for conducting inspections or certifications (e.g., government agency, accredited third-party certifier, or producer organization); and
4. The monitoring and record-keeping procedures that ensure traceability of the product throughout the production chain.

g) The labelling rules

This element is interesting as the applicant or the GI management group has to think about the future use of the GI and starts to develop a marketing strategy of the product. However, the labels can change in the time, some retailers would like to use their own labels with the GI name and logo (if any) etc.

Labelling can cover:

- The use of the national GI logo, if any,
- The use of collective private GI logo that belongs to the GI owner

National GI Logos



Cambodia's GI Logo



Indonesia's GI Logo



Thailand's GI Logo



Vietnam's GI Logo



Private GI Logo



The labelling of the GI product must include the identification of the product on the labelling. This must be shown by using an expression on the label such as: “coffee from “geographical name “, geographical indication” or by the creation of a specific logo or a complexed trademark to collectively identifying the GI products (for example: National GI logo).

The labelling, appearance and advertising of the GI product shall avoid causing confusion in the mind of the consumer regarding the rightful reference to the GI product it refers to.

In addition, this labelling section could also include the use of GI name as possible ingredient in a good, but only if done in accordance with the conditions decided on either by the applicant group, or by existing regulations. The main objective is to avoid any risk of deceiving the consumer.

CHAPTER VIII — REFUSAL OF THE APPLICATION

Under Rule 18 of the RR-GI, certain names or indications are not eligible for registration as geographical indications and must be refused by the Registrar during substantive examination.

The purpose of this provision is to ensure that only names which genuinely identify goods whose qualities, reputation, or other characteristics are essentially attributable to their geographical origin, and which do not mislead or conflict with public interest are granted protection.

Rule 18. Grounds for Refusal

The following names shall not be registered as geographical indications and shall be refused by the examiner:

(a) Contrary to Laws, Public Order, Public Policy, or Morality

Names that violate national law or offend accepted moral, social, or cultural norms shall be refused. This includes names containing offensive, discriminatory, or prohibited expressions, or those contrary to public health, safety, or national interests.

Example: A proposed GI “*Bagoong XXX*” containing obscene language or symbols contrary to decency; or a name promoting use of an illegal product such as “*Opium Wine*.”



Examiners should apply this ground restrictively, ensuring that refusals are clearly supported by identifiable legal or policy prohibitions.

(b) Foreign GIs No Longer Protected in Their Country of Origin

A GI originating from another country shall be refused if it is not protected or has ceased to be protected in its home jurisdiction. This reflects the principle of territoriality, a GI must have valid recognition in its country of origin before protection can be extended elsewhere.

Example: A foreign GI “Kobe Beef” could not be registered if its protection lapsed in Japan; likewise, “Tequila” would be refused if delisted in Mexico.

(c) Misleading or Deceptive Indications

Names that mislead or deceive the public regarding the goods’ characteristics, nature, quality, place of origin, production process, or intended use are ineligible for registration.

Example: “*Batangas Barako*” for beans sourced from Mindoro; “*French Brandy Philippines*” suggesting origin or qualities not true of the product.



Examiners should assess deception from the perspective of an average consumer, using market perception, labeling, and trade usage as guides.

(d) Generic, Common, or Customary Names

Names that consist exclusively of, or are identical with, the generic, common, or customary name of the goods in the Philippines shall be refused, especially when the GI is sought for the same product type.

Example: “Cheddar” or “Brandy” may not be registered as GIs in the Philippines, as they are understood by the public as common product types rather than indicators of origin.

Cross-Reference: See Chapter VI, 6.3.1

(e) Identical or Similar to Plant Variety or Animal Breed

Names identical with or confusingly similar to the name of a plant variety or animal breed that may mislead consumers as to the true origin of the goods shall be refused.

This ground prevents confusion between a product’s geographical origin and its breed or cultivar classification. Identical or confusing resemblance alone is not sufficient; the name must also have the potential to deceive the public about origin.

Example: “*Arabica Coffee Bukidnon*” - “Arabica” is a coffee variety, not a place; “*Angus Beef Highlands*” indicates a cattle breed, not a locality.



Examiners should consult relevant registries or authorities (e.g., BPI, BFAR, DA) to verify plant or animal nomenclature.

(f) Outside the Definition of a Geographical Indication

Applications that do not meet the prescribed definition of a GI under Rule 2(h), that is, they fail to show that the product’s quality, reputation, or characteristics are essentially attributable to geographical origin and/or human factors, must be refused.

Example: A product name based solely on branding or marketing appeal, without a verifiable link to place or production conditions, cannot qualify as a GI.



*Examiners should cross-reference the product description and causal link analysis in the **Manual of Specifications** to determine compliance.*

(g) Identical, Confusingly Similar, or Evocation of an Earlier GI

Names that are identical with, confusingly similar to, or evoke an earlier-filed or registered GI in the Philippines shall be refused if they cover the same or closely related goods and are likely to cause consumer confusion.

Example: Case C-614/17

Fundación Consejo Regulador de la Denominación de Origen Queso Manchego	Industrial Quesera Cuquerella SL
 	

In Case C-614/17, Industrial Quesera Cuquerella SL (IQC) marketed cheeses under the name “Quesos Rocinante” and used labels featuring imagery associated with Don Quixote de La Mancha, including a knight, windmills, and sheep, elements strongly linked to the La Mancha region. Although IQC was established in La Mancha, its cheeses did not comply with the product specification of “Queso Manchego.”

The Queso Manchego Foundation, which is responsible for managing and protecting the PDO “Queso Manchego”, brought an action before the Spanish courts, arguing that the use of the name “Rocinante” and the associated imagery constituted an unlawful evocation of the PDO under Article 13(1)(b) of Regulation (EU) No 1151/2012.

The Court of Justice of the European Union held that evocation of a PDO may arise through figurative elements and indirect references, even where the protected name itself is not used. The decisive test is whether the signs used are capable of calling to mind, for the average consumer, the protected PDO. As such, the PDO’s protection extends beyond the literal use of its name to prevent the exploitation of its reputation through evocative imagery or references.¹⁶

¹⁶ <https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=celex:62017CJ0614>

Rule 19. Order of Refusal

When the Registrar determines that an application falls under any of the above grounds, an Order of Refusal shall be issued to the applicant.

The order must clearly state the reasons for refusal, referencing the specific rule and factual basis for the decision.

The applicant may appeal the Order of Refusal to the Director General in accordance with the Uniform Rules on Appeal.

No motion for reconsideration of the Registrar's decision is permitted.

CHAPTER IX — THIRD PARTY OBSERVATION (Rule 21, RR-GI)

Under Rule 21 of the Rules and Regulations on Geographical Indications (RR-GI), any interested person who believes they may be damaged by the registration of a geographical indication (GI) may file a Notice of Third-Party Observation (TPO) within the prescribed period after publication of the GI application. The TPO mechanism provides a means for public participation and transparency in the GI registration process.

9.1 Purpose

The TPO allows interested persons to bring to the attention of the Registrar any relevant information affecting the registrability of a GI. It ensures that the examination process considers not only the applicant's submissions but also observations from potentially affected stakeholders. No specific grounds are prescribed under the RR-GI, allowing the Registrar to consider any factual, legal, or technical matter that may assist in determining the GI's compliance with the law.

9.2 Filing and Periods

- A Notice of Third-Party Observation may be filed within one (1) month from the publication of the GI application, upon payment of the prescribed fee.
- Within one (1) month from filing the notice, the observer must submit a verified written observation, including supporting documents.
- A one-time extension of one (1) month may be granted upon written request showing good cause and payment of the corresponding fee.

9.3 Action by the Registrar and Applicant's Comment

Upon receipt of the verified observation, the Registrar shall furnish a copy to the applicant, who may file a written comment within one (1) month from receipt. The comment period may likewise be extended for one (1) month under the same conditions.

The Registrar shall consider the observation and the applicant's comment, if any, in deciding whether to grant or refuse registration of the GI.

CHAPTER X - REGISTRATION (Rule 22, RR-GI)

If no Third-Party Observation (TPO) is filed within the prescribed period, the geographical indication shall be granted protection on the day immediately after the last day of publication and entered in the Register of Protected Geographical Indications.

In case there is a TPO, protection shall be reckoned from the finality of the decision that the geographical indication is entitled to registration and protection.

The registered geographical indication is protected for an unlimited term until or unless revoked with finality.

Once the decision to register becomes final, the Registrar shall cause the entry of the GI in the Register of Protected Geographical Indications, indicating:

- the registered GI;
- the goods covered;
- the geographical area of production;
- causal link (quality, reputation, and characteristics) and
- the name of the applicant and other details

The registration shall also reference the Manual of Specifications (MoS) on file, which forms part of the basis for determining compliance with the requirements for registration.

The protection remains valid indefinitely but may be subject to revocation under subsequent rules if the product no longer meets the defined conditions or if the GI becomes misleading or generic.

CHAPTER XI — REVOCATION OF REGISTRATION (Rule 24, RR-GI)

At any time, upon payment of the prescribed fee and verified petition by any interested person alleging that protection of a geographical indication is no longer warranted, the Registrar shall give due notice and opportunity to be heard to the registrant. If the petition is found meritorious, the registration shall be revoked based on any of the following grounds:

a) Failure to Fulfil the Conditions for Protection

This ground applies where the registered GI no longer meets the legal definition or requirements for protection.

Example: A registered GI for “Guimaras Mangoes” would be subject to revocation if the fruit marketed under the GI were regularly sourced from outside Guimaras, thereby losing the defined link between quality and origin.

b) Change in Geographical Origin or Determinant Factors

Revocation may be warranted when natural or human factors that determine the quality or reputation of the product have changed substantially.

Example: The GI underwent boundary redefinition after climatic and vineyard conditions in some areas no longer produced grapes with the characteristics required by the specification.

Example: If a GI for a traditional textile was mass-produced using synthetic materials outside the traditional weaving centers, it could lose its link to place and authenticity.

c) Loss of Effective Control by the Producer Group

If the recognized producer organization no longer exercises effective control over the use of the GI, its production standards, or the quality of goods, protection may be revoked.

Example: If some producer consortium for cheeses may face sanctions when internal controls fail to prevent misuse of the GI label by unverified producers.

Example: A GI organization could face revocation if it ceases to monitor compliance with its Manual of Specifications and cannot prevent misuse of the name by non-members.

d) Registration Obtained Through False Statements or Documents

This applies where the registration was granted based on misrepresentation or falsified evidence.

Example: A hypothetical revocation could occur if applicants claimed traditional status or production methods that were later proven fabricated or unsupported by historical or technical data.

Example: A GI could be revoked if documents claiming community representation were found to be falsified or unauthorized.

e) GI Has Become Generic or Common Name of the Goods

A GI loses protection if it becomes the generic name for the product in the market.

Example: If “Darjeeling” were used widely for teas not grown in the region and no longer perceived by consumers as referring to a specific origin, it could risk losing distinctiveness.

CHAPTER XII — EXCEPTIONS (Rule 27, RR-GI)

Rule 27. Prior Users of Geographical Indications and Trademarks

Rule 27 sets out specific exceptions to the protection of geographical indications, recognizing prior rights acquired in good faith and ensuring consistency with international commitments, particularly under the TRIPS Agreement. These exceptions balance GI protection with the legitimate interests of prior users and trademark owners.

1. Prior Use of Foreign Geographical Indications

Nothing in the Rules and Regulations on Geographical Indications shall prevent the continued or similar use of a geographical indication of another country in connection with goods or services by:

- a national or domiciliary of the Philippines; or
- a national who has a real and effective commercial establishment in, or is doing business in, the Philippines,

provided that the geographical indication has been used continuously with respect to the same or related goods or services in the Philippines, either:

- i. for at least ten (10) years preceding 15 April 1994; or
- ii. in good faith preceding 15 April 1994.

This exception applies only to **foreign geographical indications** and protects historical or established uses that predate the international GI framework under the WTO.



15 April 1994 marks the signing of the Marrakesh Agreement establishing the World Trade Organization, which includes the TRIPS Agreement (Annex 1C)

2. Prior Trademarks Acquired in Good Faith

Where a trademark has been:

- applied for or registered in good faith; or
- rights to the trademark have been acquired through use in good faith,

either:

- i. before the effectivity of the RR-GI; or
- ii. before the geographical indication is protected in its country of origin,

the implementation of the GI Regulations shall not prejudice:

- the eligibility for registration of the trademark;
- the validity of the trademark registration; or

- the right to use the trademark,

even if the trademark is identical with or similar to a geographical indication.

This provision recognizes the coexistence of GIs and earlier trademarks, subject to the conditions of good faith and priority.



In assessing conflicts between a GI and a trademark, examiners must determine:

- *the filing or acquisition date of the trademark;*
- *whether the trademark was adopted and used in good faith; and*
- *whether the trademark predates GI protection in the country of origin.*

3. International Reference

Rule 27 reflects the principles embodied in Article 24.4 and Article 24.5 of the TRIPS Agreement, which allow continued use of certain geographical indications and protect earlier trademarks acquired in good faith.

Articles 24.4 and 24.5 of the TRIPS Agreement apply specifically to **wines and spirits**, providing exceptions for prior good-faith uses and earlier trademarks in relation to those products. In contrast, the Philippine Rules and Regulations on Geographical Indications extend similar principles of prior use and trademark coexistence **to all categories of goods**, reflecting a broader domestic policy choice beyond the minimum standards set by TRIPS.

ANNEX "A" APPLICATION FORM

		Intellectual Property Office of the Philippines 28 Upper McKinley Rd, Fort Bonifacio, Taguig City 1634 PH ☎+63 (2) 7236-6300 ✉ ask@ipophil.gov.ph	
		GI Application No.	
		Date Received	
		Date Mailed	
		IPSO / ITS Code	
Application for Geographical Indication			
GEOGRAPHICAL INDICATION INFORMATION			
		GEOGRAPHICAL INDICATION NAME:	
		DISCLAIMER:	
APPLICANT INFORMATION			
TYPE OF APPLICANT: ☐ Organization ☐ Association ☐ Govt. Agency / LGU			
Name of Organization/Association/ Government Agency / LGU			
Address (Complete street info, village, subdivision, barangay)			
Town / City	Province / State	Zip Code	Country of Residence
Contact No.	Email Address	Place of Incorporation/	
Rule 9. Additional Qualifications for Non-Filipino applicants ☐ Juridical entity incorporated or organized in a country which is a party to the World Trade Organization Agreement on Trade-Related Aspects of Intellectual Property Right or to other international convention or agreement concerning the protection of geographical indication, to which the Philippines is also a party. ☐ Domiciled or has a real and effective industrial or commercial establishment in the Philippines or in a country which is a party to an international convention or agreement concerning the protection of geographical indications, to which Philippines is also a party			
RESIDENT AGENT / AUTHORIZED REPRESENTATIVE (If supplied, all correspondences will be sent to this contact)			
Company Name (The law firm, if applicable):			
Address: (Complete street info, Village, subdivision, barangay)			
Last Name:	First Name:	Middle Name:	
Town / City	Province / State	Zip Code	Country of Residence
Contact No.	Email Address	Nationality	
TYPE OF GOODS (category of goods)			
☐ AGRICULTURAL PRODUCTS: (Processed / Unprocessed)		☐ ALCOHOLIC BEVERAGES:	
☐ NATURAL PRODUCTS: (Processed/Unprocessed)		☐ HANDICRAFTS:	
☐ FOODSTUFFS :		☐ INDUSTRIAL PRODUCTS:	

DESCRIPTION OF GEOGRAPHICAL AREA

Note: description of the geographical area to which the geographical indication applies, including its territorial limitations or boundaries and natural and human factors. (Pls. attach copy of map of geographical area)

DESCRIPTION OF GOODS TO WHICH THE GEOGRAPHICAL INDICATION APPLIES

Note: description of the specific quality, reputation or other characteristic of the goods and how that quality, reputation or other characteristic, as the case may be, is essentially attributable to the geographical area where the goods originate, including inherent natural and human factors

Quality, reputation, or other characteristics essentially attributable to the geographical origin

Notes:

- a. *Describe how the quality or other characteristics of the goods are essentially attributable to the place from which the goods originate. These could relate to the natural environment such as the soil composition, climate, or biodiversity, and/or to human factors such as local know-how, particular skills, etc. where applicable*
- b. *Where the GI is applied for on the basis of reputation, explain how the reputation of the goods is essentially attributable to the place from which the goods originate. You may prove reputation with evidence of awards, references in professional books or with press reports in the mass media. If the documentary evidence is not in English, an English translation of the document shall be provided.*

PLEASE ATTACH THE FOLLOWING:

- a. Proof of legal identity of the applicant (e.g. Articles of Incorporation) and brief description of the association, organization, etc.
- b. Code of Practice/Manual of Specifications
- c. Certification from the concerned government agency or equivalent independent body; (for local applicants)
- d. Certification or certificate of registration from foreign authorities (for foreign applicants)

IMPORTANT REMINDERS	
IOPHL PRIVACY STATEMENT AS PER RA 10173 ALSO KNOWN AS "DATA PRIVACY ACT OF 2012" AND SIGNATURE	
☐ Agree ☐ Disagree By ticking the AGREE box and affixing my signature to the right, I understand that I am giving consent to the collection, storage, sharing and other necessary processing of the personal information contained in this application, freely and voluntarily, to the Intellectual Property Office of the Philippines (IPOPHL) and its partners, in the exercise of its mandate as the lead government agency for the protection of IP rights and in compliance with the provisions of RA 10173, also known as, the Data Privacy Act of 2012.	I declare that all the information provided above are true and correct to the best of my knowledge. SIGNATURE OVER PRINTED NAME

NOTE: Submission of this Application Form and Payment of the Filing Fees do not mean that the G.I. is registered as there are stages for the whole Registration process. The G.I shall be deemed registered upon completion of all the requirements under the IP Code and G.I. Rules and Regulations.

ANNEX "B"

Schedule of Geographical Indications Fees

Type of Fee	Small Entity	Big Entity
Basic fee ¹	3,000.00	12,000.00
Extension of time to file response	500.00	1,500.00
Appeal to the Director General	5,000.00	15,000.00
Filing of Notice of Third-Party Observation (TPO)	5,000.00	15,000.00
Motion for Extension to File Notice of Third-Party Observation	2,000.00	4,000.00
Publication of Registration (2 nd Publication)	1,250.00	2,500.00
Issuance of Certificate of Registration (COR)	1,000.00	2,500.00
Petition for Revocation of Registration	5,000.00	20,000.00



ROWEL S. BARBA
Director General